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The Yale Political Quarterly

An Undergraduate Publication

VOLUME 21, NUMBER 2, DECEMBER 1999

FOUNDED 1979

Daniel O'Connor

Kant vs. Locke on the Right to Rebel Against Oppressive Regimes

Jason Lott

Bad Things Happen: An Analysis of School Shootings

Bert Loan

Is Microsoft the Borg? An Economic Analysis of Antitrust Law

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RESISTANCE IS FUTILE

Lessons from the uncertain future of Microsoft

Bert Loan

THERE HAS BEEN A LOT OF PACING, SWEATING, WRINGING OF HANDS, AND HEAVY breathing by policy analysts, legal experts, and economists lately. No, they are not in love (and certainly not with each other!), and no, we are not facing imminent alien invasion. These various social scientists have been trying to grapple with the implications of the November 5th Findings of Fact by Judge Thomas Penfield Jackson in United States of America v. Microsoft Corporation. According to that decision, Microsoft is officially a "monopoly," and one that has "harmed consumers."[1] While it is true that some are indeed in love—with Microsoft—there are others that feel threatened by what they perceive to be an ominous, omnipotent, malevolent force, of intergalactic proportions, ready to take over the world. The rhetoric is rife with romantic delusion on the one side and science fiction on the other. Those who think the answer lies somewhere in between these two extremes should look outside this spectrum entirely to some different questions. The important issue that this case raises is not whether Microsoft is a company bent on world domination, but rather what institutions in society are best equipped to decide the uncertain future of the coming century's defining technologies.

"We Are Microsoft"

Star Trek fans will, no doubt, find the title of this article familiar. If you're not a fan of Star Trek, you might be surprised to find out that the show has some familiar characters, or ones which seem familiar in light of the emerging battle between the U.S. Department of Justice and Microsoft. Listening to the characterizations of Bill Gates and Microsoft in the popular press, one is tempted to compare them to the galaxy's most formidable foe: the Borg.

The Borg are a giant, monolithic, galaxy-roving society, the members of which are all integrated into a single collective consciousness—a ghoulish synthesis of biology and technology. Not known for their ability to innovate, they steal the technologies of others and force entire cultures to "adapt" to their standards. They wander through outer space in a giant, self-sustaining, cube-shaped ship, looking for beings to enslave, resources to exploit, and paradigms to depose. Like an interstellar bivalve, they suck everything they encounter into their society, from single space ships to the inhabitants of entire worlds, discarding what is (by their definition) primitive, incompatible, and inferior, while employing the rest to fortify their ever-increasing advantage. They rove the deep realms of space in search of new species and technologies in order to *assimilate* them, i.e., adapt them to their obscenely complex operating sys-

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tem.

Speculation rages about what sound our PCs will make when we boot them with Windows 2000, but if you agree with the recent Findings of Fact, you are pretty sure it will be something like this: *We are Microsoft. We will add your biological and technological distinctiveness to our own. You will be assimilated. Resistance is futile.*

By many accounts, Microsoft shares the Borg trait of turning all intelligent life-forms into choiceless drones and assimilating them into a vast, hive mind. Once assimilated, some say, these drones find that the hive brings harmony and order to their formerly "individualistic" but chaotic lives by filtering out any information it judges inferior, irrelevant, or otherwise "unacceptable". A closer examination of the economic theory of monopoly and the history of antitrust enforcement reveals that the methodology, ambitions, and organizational architecture of the Borg, which popular cynicism attributes to Microsoft, may better represent the centralized authorities of the Federal Trade Commission and the Department of Justice.

Will Microsoft Take Over the Universe?

Ralph Nader, well known as a defender of consumer rights and safety, fears the answer may be yes—unless something is done to stop them. The attitude prevalent today amongst Microsoft's critics was summed up two years ago in the title of Nader's 1997 article for *Slate*: "The Microsoft Menace: Why I'm leading a crusade to stop its drive for cyberspace hegemony."[2] According to Nader, "Microsoft is aggressively seeking to shape the future of personal computing, Internet publishing, and electronic commerce. It has achieved a dominant position in the computer industry already and is poised to extend its reach."[3] Like many of Microsoft's critics, Nader sees an ominous threat that must be thwarted. "For those who look into the future and are concerned, there are some fundamental questions: What can be done? What should be done? Wherever Microsoft goes today or tomorrow, it must not be allowed too much control over something as important as the way we communicate with one another."[4]

On May 18, 1998, the Justice Department, 20 states, and the District of Columbia filed major new antitrust cases in their crusade to *do something* to stop Microsoft's "drive." The central accusation is that Microsoft, whose operating systems reside on 80 to 90 percent of the Intel PCs in operation today, has wielded its monopoly power to the detriment of consumers. The argument is that Windows' overwhelming dominance on the desktop has enabled Microsoft to dictate terms to hardware and software vendors who know full well that without Windows their products have little chance of reaching any but a small niche market.

Back in June of 1990, when the FTC first began investigating the possible collusion between Microsoft and IBM, a paper was published in Scientific American called *Positive Feedbacks in the Economy*, by W. Brian Arthur, which caught the attention of certain people at the DOJ.[5] Since then we seem to be *locked-in* to a whole new economic analysis of high-tech industries which, for the first time in 30 years, is breathing new life into antitrust activists.

The man responsible for this return to antitrust's golden age is Joel Klein, head of the Antitrust Division at the DOJ. Klein has claimed that Brian Arthur's work has principally influenced his understanding of the way high-tech markets operate. Arthur won the Schumpeter Prize in Economics in 1990 for his work on "increasing returns." This work re-examined the neoclassical economist's assumption of diminishing returns—the idea that the more one invests in something, the less return one gets from each additional increment of investment. According to Arthur, "The fact that there are increasing returns is wonderful news. If something gets better, as it's more used, this is great news; if something gets cheaper the more it's produced, that's won-

derful."[6]

In his work, *Increasing Returns and Path Dependence in the Economy*, Arthur explains how increasing returns operate like a positive feedback system which ensures the advancement of companies that have an advantage in market share, and precipitating the further decline of those that don't.[7] Arthur claims that, it's turning the "dismal science" into a "cheerful science."[8] Some fear, however, that increasing returns in the high-tech industries make them particularly vulnerable to emerging monopolies, and they believe that a new arsenal of anti-trust regulation is required to combat this emerging problem.

There are three "very particular mechanisms,"[9] according to Arthur, which lead to increasing returns. The first is *up-front costs*. That is, the huge expenditure on research and development that any software company might incur in producing its first program. After that, the cost of producing the second copy of that same program on a disk or CD is virtually nil. The second mechanism is what Arthur calls *groove-in*. The more you use something the more dependent on it you become, or more specifically, the costlier it becomes to change to something new. Having been raised in an English-speaking family I tend to read only books in English. Of course, learning Klingon would allow me to read books in Klingon (which are available, believe it or not) as well as fraternize with the wackos at Star Trek conferences; but learning has a cost, and I have to weigh that cost against the expected benefit of reading Klingon literature and making unusual friends. I am grooved-in to using English. The third mechanism is *network effects*, "the positive feedback that comes from a network of users."[10] The more people that learn to speak Klingon, the more valuable it becomes for others to learn the language. Other examples include telephones, e-mail, software languages, etc. The more users there are of these things, the more valuable they become for others to use and to continue using them.

The punch line in all of this is that your product doesn't have to be great for your company to become great. Up front costs, groove-in, and network effects are the principle mechanisms leading to increasing returns, but what determines the outcome, in a market with increasing returns, are small events throughout the process which result in what is called *path dependence*. The concern about path dependence is that we will get "locked-in" to one standard or paradigm for which there are superior substitutes or alternatives. Those who romantically believe that the market is going to always, somehow, lead us down the right path and produce the best products are mistaken, according to Arthur. Markets just don't work that way. The outcome is not always determined by what is best along the way, but by seemingly insignificant historical accidents. "This notion that the market is always wonderful and perfect is a right-wing ideological idea. People don't expect that all the friends they have are the most optimal friends. People get married; sometimes it's wonderful and sometimes it isn't. Lock-ins occur; sometimes for the best, sometimes not. The theory doesn't say that what locks in has to be inferior. The theory says that it's not necessarily superior."[11]

Given this analysis you might conclude that Arthur is cheering on the DOJ in its attempts to regulate Microsoft. He is quick to point out, however, that the theory of increasing returns and path dependence do not necessitate intervention in the market. "I definitely think that the Department of Justice should not necessarily try to inhibit firms in the industry trying to lock-in this or that market."[12] In the same interview, Arthur says, "I would be pretty clear that these are theories of how those market[s] operate; they're not theories of whether Microsoft is good or bad....Increasing returns theories are

in no way against Microsoft." He even goes so far as to say that "I think monopoly in high tech is not necessarily a bad thing. Monopolies are inevitable in high tech given that there are so many sources of increasing returns. But they are short-lived, temporary monopolies.....In fact, it's taken for granted in high tech that lock-ins typically last anywhere between a year or two and five years."[13]

Arthur's disciples at DOJ are evidently more enthusiastic about the application of increasing returns to antitrust law. Klein has specifically attributed the inspiration behind prosecuting Microsoft to his reading of Arthur's work. Since an implication of increasing returns is that markets can frequently support the adoption and perpetuation of inefficient technologies, it does tend to give intellectual weight to calls for government intervention. The DOJ's most recent lawsuit against Microsoft specifically invokes path dependence theory, stating that "because of the market's network effects, the significant increase in Microsoft's share of the browser market...will tip the market in Microsoft's favor and accelerate its dominance and competition's demise."[14] Nor is the demise of competition all that is at stake in the eyes of path dependence proponents. Gary Reback and a group of co-authors (including Brian Arthur) echo Ralph Nader's fears:

> It is difficult to imagine that in an open society such as this one, with multiple information sources, a single company could seize sufficient control of information transmission so as to constitute a threat to the underpinnings of a free society. But such a scenario is a realistic (and perhaps a probable) outcome. [15]

Stan Liebowitz and Stephen E. Margolis have watched the fortunes of increasing returns theory with interest since the early 1990s. Their conclusion about the theoretical and historical evidence for network effects as a source of market failure is that "the case for lock-in is an extraordinarily weak one."[16] Without denying that increasing returns and path dependence can exist, or even might be fairly common, Liebowitz and Margolis argue that the claim that these factors are significant causes of market failure ignores that people possess ordinary foresight. For example, if a manufacturer with a superior product saw that a competitor's inferior product was locked in, he would have a strong interest in providing his customers with special incentives to tip the market back in his favor—even if this meant posting a loss for a time while building his customer base. If he is correct in believing that his product is superior, his wealth potential will be greater than that of his competitor and he will be able to offer greater incentives to early adopters. For the inferior technology to be irremediably locked in by the market, sellers must be operating on the most myopic of time-horizons—not a typically entrepreneurial attitude, or even one that reflects ordinary thought for the future.

Consumers, too, would have to be tragically shortsighted for the kind of lock-in Arthur claims to be a common phenomenon in the economy. The consumers that populate his models would not have seen the benefit in buying an FM radio in the 1960s, or a compact disc player in the early 80s. Of course, real-world consumers made these transitions from one "locked-in" technology to the next with scarcely a hitch.

Path dependence enthusiasts have collected an array of network effect stories to bolster the appeal of their theory. While no one denies that network effects can influence the demand for certain technologies, Liebowitz and Margolis found the most common stories of sustained lock-in to be false, inconclusive, or misleading.[17] The QWERTY keyboard has become the poster child for path dependence, thanks to prominent citations by economists Paul

Krugman and Brian Arthur, and biologist Steven Jay Gould, among others. The arrangement of keys on typewriters and computer keyboards supposedly has its origin in early manual typewriters, which frequently jammed when two keys struck the platen together. The QWERTY arrangement (named after the first six letter keys across the upper left-hand side of the keyboard) was supposedly selected to slow down typists and avoid stuck keys. Once typists were "grooved-in" to the QWERTY keyboard, no manufacturer had the incentive to innovate a better one. When a better keyboard was developed in 1936 by August Dvorak, tests demonstrated its superiority. Yet despite Dvorak's best efforts to market his innovation, he was never able to overcome the vast "installed base" of QWERTY machines. Consequently, despite the evident inferiority of a design based on a long-irrelevant rationale, the world was stuck with QWERTY, and by all appearances, will be for as long as there are keyboards.

The biggest problem with this "Fable of the Keys" is that it is false in nearly every detail.[18] QWERTY was designed to minimize contact between adjacent keys, not to slow typists. QWERTY keyboards were one among many competing designs in the 1880s, and frequently were featured in typing contests held across the country. As subsequent tests have verified, its design maximizes the alternation between hands, aiding faster typing. Dvorak's keyboard tested superior only in Dvorak's own biased tests. In short, the QWERTY keyboard is an example of how the market tends to settle on the best available technology, ex ante.

Another urban legend of path dependence involves the videotape battle between the Beta and VHS formats (also cited with approval by Brian Arthur). VHS is thought to have swept the market by being first to market, despite having a slightly inferior format for recording. Once VHS was locked-in by network effects, the superior Beta technology could not gain a foothold in the market. The facts of the case are different, however. Beta was first to market by two years. The differences in sound and picture quality were undetectable to most consumers, but they did notice one problem with Beta which probably caused VHS to become the standard for home video tape: a single Beta tape was not long enough to record a full movie on. Did VHS win the battle for the videocassette recorder with the help of network effects? If anything, its eventual dominance appears to have emerged despite them.[19]

But what of Microsoft's success? Aren't the facts of its market dominance enough for a reasonable person to find the tell-tale tracks of path dependence? Again, certainly network effects contribute to the persistence of Windows on the desktop. But several considerations point to the fact that at least Microsoft does not consider itself comfortably ensconced as King of the Hill. Microsoft does not behave as a textbook monopolist. Traditionally the concern over monopolies has been that they are able to raise prices by restricting output. Microsoft's behavior has been quite the opposite: keep margins low to continuously expand the customer base.

Some have argued that Microsoft's low prices are a form of predation. If it can drive competitors out of business through aggressive pricing, it will be able to raise prices later when its customers have even fewer options to choose from. There are two serious problems with this theory. First, business history is devoid of a single example in which a business was able to use predatory pricing to gain anything but a fleeting monopoly in its market. You will search in vain to find an example in which the cost of predation in lost revenue was paid for by subsequent monopoly profits. While it is possible for some firms to price inefficient competitors out of business, no firm can prevent new entrants from seizing the opportunity to undersell a monopolist with fat profit margins.

Another reason is one of pure

arithmetic. Microsoft already has an overwhelming market share. If its low prices are due to selling below cost, it is losing revenue on a huge number of customers who were already willing to pay the higher price. The revenue gained by adding incrementally to its already vast customer base would hardly cover the lost revenue from the existing base. The larger a firm's market share, the less likely that predatory pricing will hurt competitors more than itself.

True Chaos

Arthur's theory of path dependence emerges from a relatively new scientific paradigm called chaos theory. This paradigm emphasizes the analysis of dynamic processes over static equilibria, embraces the complexity of social phenomena rather than attempting to reduce it to deterministic formulas, and builds on insights about self-organization within seemingly chaotic systems.

Arthur has rightly criticized the static equilibrium models that pervade much of this century's economic analysis. But many of Arthur's "new" insights can be found in the market process analysis of the Austrian School of economics, which dates back to the 1870s and has been advanced by such 20th century economists as Ludwig von Mises, Ludwig Lachmann, and Friedrich Hayek. In certain respects, the Austrian School economists are truer to the spirit of chaos theory than Arthur himself—though most of their work predated chaos theory by several decades. (See the appendix for a comparison of mainstream neoclassical economics, Brian Arthur's chaos-based theory, and the Austrian School of economics.)

One of the most important implications of complexity in the economy is uncertainty. In describing what he calls the "kaleidic" society, Austrian School economist Ludwig Lachmann emphasizes the economy's irreducible unpredictability:

> The state of knowledge of a society cannot be the same at two successive points of time, and time cannot elapse without demand and supply shifting. The stream of knowledge produces ever new disequilibrium situations, and entrepreneurs continually manage to find new price-cost differentials to exploit. When one is eliminated by strenuous competition, the stream of knowledge throws up another.[20]

Silicon Valley pundits love to speak approvingly of how chaos rules in the information technology industry. What they mean by this is not chaos, per se, which is a circumstance in which no discernable pattern can be found by which to guide any actions at all. But it certainly is an industry in which a great number of competing views about the future can all be reasonably well-founded, and in which no ready authority exists who is capable of sorting out, ex ante, which view is correct.

Michael Polanyi pointed out that this kind of "chaos" is really a kind of order. He called it *polycentric order*[21]—an order in society that exists not because of a single hierarchy of ends or plans, but because of the spontaneous interplay of many different plans and the adaptations and feedback that this interplay generates. This notion of *spontaneous order*,[22] as Friedrich Hayek termed it, is perfectly consonant with chaos theory's emphasis on self-organizing systems. By emphasizing its origin in the rivalrous tousle of market competition, the Austrian School stress an important fact relevant to the issue of antitrust enforcement, namely that competition is a process of discovering and disseminating dispersed knowledge.

There are two ways one can respond to uncertainty. One is to embrace it, adapt to changes as they unfold, correct one's inevitable errors as quickly as possible, and be ceaselessly alert to new opportunities that arise. Another is to try to control uncertainty by imposing a circumstance

that is less unpredictable. The problem with the second approach is that the uncertainty of the market stems from the diversity of creative individuals. The only way to impose predictable order on this kind of "chaos" is to squelch certain visions in advance. This can be thought of as an attempt to replace polycentric order with monocentric order, the deliberate arrangement of society according to a single view of what is possible and valuable to society at a particular point in time. It is the order of the Borg hive.

But ultimately the Borg hive is, and can only be, science fiction. Rivalry is the only way we have ever been able to discover the knowledge about which visions are better for people. This knowledge is based on bits of information that are dispersed in inarticulate form among millions of people: consumers who know what they want when they see it; software designers who understand bits and pieces of what might be achieved; entrepreneurs with intuitions (some right and some wrong) about how technical possibility might converge with market opportunity; traders who monitor price changes to gauge the shifting scarcity of resources. This knowledge emerges only in the process of competition. But this leaves no ground from which market structures can be judged for the purpose of antitrust enforcement.

> Competitive values or allocations do not exist "out there," independently ascertainable apart from actual market results.... In the absence of competitive markets, economic theory cannot tell us what is optimal. Still less can theory yield detailed predictions of what firms would have done under competitive conditions. Antitrust economics assumes, however, that policymakers can do just this—or, at least, it assumes that they can move us in the correct direction.[23]

Thus, a rational anti-trust policy would have to be based on knowledge that is discoverable only after the fact—which, of course, would not be rational at all!

Microsoft understands this quite well. Bill Gates can attempt to guess from what direction Microsoft's competition will come in the next three or five or ten years. But he can't *know*. Will the open source marvel Linux rocket onto our desktops as it has into our servers? Will development of Java-based applications that can run on any browser make operating systems like Windows irrelevant? Will the growth of OS-independent "middleware" threaten Windows with obsolescence? Or, as has usually been the case, will some entirely new and unforeseen technology transform the playing field, catapulting a new generation of computer prodigies into dominance? Perhaps Microsoft will maintain its position through scrappy research and adaptation as the winds of creative destruction blow on its door. Even Bill Gates cannot have future knowledge in the present. "The point is, no one knows," James DeLong writes—"not Gates and not Klein. But Gates at least knows he does not know."[24]

Only one thing seems certain: Windows won't maintain its "lock" on the desktop without continuing to innovate—change comes too fast and runs too deep in this industry for network effects alone to carry the day. Even Brian Arthur acknowledges that path dependence provides, at best, a temporary advantage.

Conclusion: Boldly Go Where No One Has Gone Before

Both the Justice Department and Microsoft employ the rhetoric of innovation to support their cases. Klein argues that protecting innovation means preventing Microsoft from using its market power to crush new upstarts in the industry and foreclose opportunities for diversity on the PC desktop. Microsoft's counsel argues that pro-

tecting innovation means not having to seek regulatory permission to add features to Windows, not having to consult an army of lawyers simply to know if it is in compliance with the shifting demands of antitrust authorities. Which side is right?

Answering this question requires an examination of the underlying paradigms represented by Microsoft and the Department of Justice. Despite comparisons of the Redmond software giant to the closed, controlled system of the Borg, the real paradigm that accounts for Microsoft's success is one of *openness*. It was Gates' vision of an open architecture that tapped the knowledge and creativity of many software makers to foster a rapidly evolving operating system. Contrast this approach with that of Apple, which sought to maintain total control over hardware and software. Where Apple tried to reap monopoly profits by withholding the license for its operating system, Microsoft got Windows on as many machines as it could, where software developers, consumers, and Microsoft itself could profit from the platform. Apple soon discovered that you don't get very far in this industry by thinking like a monopolist. Microsoft got to where it is today by not acting like one.

In a larger sense, Microsoft also represents openness in its view of the future—a key theme of this essay. It regards the future as profoundly open-ended and sees its relation to it as one of alertness to new possibilities, quick adaptation to change, responsiveness to rivals, and a healthy respect for what needs to be learned and discovered in order to stay on top. Microsoft spends 17 percent of revenue on research and development, compared to about 10 percent each for Sun and Netscape, and 6 percent for IBM.[25] This is one of the surest signs that Bill Gates is sincere when he says he considers Microsoft's market to be as open and competitive as ever.

Although the DOJ uses some of the same words to describe its objectives—innovation, competition, etc.—its paradigm is something altogether different. Rather than seeing competition as an open-ended process by which the market ceaselessly remakes itself to fit new realities, the government sees it as a controlled state to be achieved. Its antitrust case against Microsoft is based on the impulse to impose order on chaos, even if this occurs at the expense of the very discovery process which makes competition healthy for society in the first place. As one technology columnist put it, "If Microsoft had had to go to Webster Hubbell to get permission to put networking in the Windows operating system, we would still be connecting parallel cables and using LapLink, and the Ethernet chip set would still cost several hundred dollars for the chips alone. Imagine the consequences of going to Janet Reno for permission to distribute Internet Explorer for free as opposed to charging a price 'competitive with Netscape.'"[26]

In the end, perhaps it is the Justice Department that is best personified by the Borg. Unable to embrace the chaos of creativity, individuality, and discovery, it must "assimilate" Microsoft to bring it into compliance with its own predefined criteria of *competitive market*, *comparable technology*, or *fair price*. Those who call for a more *laissez faire* approach don't do so because they think that things are perfect the way they are but because there is a market process already at work discovering new solutions and eroding the power of companies who fail to serve consumers.

If Microsoft's appeals fail, the government will likely force it to *balkanize*[27] Windows into separate components or license it to others to modify and market independently. Economists estimate that this will cost consumers tens of billions of dollars in higher software, hardware, and related costs. But this result is likely to be many years away, if it comes at all. In the meantime, notes Virginia Postrel, "the real future of the software industry is already being decided entirely outside the court system—in a technological marketplace too fast-moving and too accepting of good new ideas to be artificially held in check."[28] Resistance may indeed be futile.

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[16] Liebowitz and Margolis, "Dismal" 4

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[18] For a full debunking of the QWERTY myth, see S. J. Liebowitz and S. E. Margolis, "The Fable of the Keys," 33 Journal of Law and Economics (1990).

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[34] F. A. Hayek, Individualism and Economic Order (Chicago: University of Chicago Press, 1948) 77.

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Appendix[29]

"Old" Economics	Arthur's "New" Economics	Austrian School Economics
Decreasing returns	Much use of increasing returns	Decreasing and increasing returns acknowledged, though the competitiveness of markets does not hinge on whether returns are increasing or decreasing.[30]
Based on 19th-century physics (equilibrium, stability, deterministic dynamics)	Based on biology (structure, pattern, self-organization, life cycle)	Based on Scottish Enlightenment concepts of spontaneous order and the evolution of social institutions (concepts borrowed by biology from the Scottish moral philosophers)[31] Focuses on dynamic processes driven by disequilibrium rather than equilibrium states. "The world is never in equilibrium."[32]
People identical	Focus in individual life; people separate and different	Values and expectations are individual and subjective.[33] Knowledge is dispersed and incomplete.[34]
If only there were no externalities and all had equal abilities, we'd reach Nirvana	Externalities and differences become driving force. No Nirvana. System constantly unfolding.	Externalities are the impetus for the evolution of new institutions. Entrepreneurship, the dynamic element in the economy, emerges because of differences in knowledge and expectations. Entrepreneurial activity reveals illusory nature of Nirvana.[35]
Elements are quantities and prices	Elements are patterns and possibilities	Elements are the plans, subjective values, and actions of individuals, and the processes by which these are coordinated and ordered
No real dynamics in the sense that everything is at equilibrium	Economy is constantly on the edge of time. It rushes forward, structures constantly coalescing, decaying, changing.	All entrepreneurial action is impelled by conditions of disequilibrium, spurred by imagination and alertness to unnoticed opportunities. "The future is uncertain, the past alone known, or at least knowable....Time cannot elapse without changes in the constellation of knowledge accompanied by capital gains and losses."[36]
Sees subject as structurally simple	Sees subject as inherently complex	Hayek referred to the global economy as "the most complex structure in the universe."[37]
Economics as soft physics	Economics as high-complexity science	Rejects mathematical formalism and prediction as standards of what is scientific; Adopts a compositive method that is historically sophisticated and realistic about the limits of human reason in the face of complexity.[38]

Kant vs. Locke on the Right to Rebel

Daniel O'Connor

In his essay "Theory and Practice," Immanuel Kant argues that citizens must always obey their government and consequently never rebel against it. He defends this absolute prohibition by claiming that rebellion would violate requirements of duty and morality,[1] which theoretically permit only a government to interpret the moral will of a society and obligate citizens to act according only to a priori reason. Despite Kant's objections, Locke's principles of rebellion not only conform to the Kantian categorical imperative and support the right of a collective to determine and execute rebellion for itself, but also demonstrate paradoxes that in general trouble Kantian political theory.

Kant bases his political theory on the morality that he develops in the *Groundwork of the Metaphysic of Morals*. Fundamentally, Kant claims that the basis of morality is a good will that acts only according to a conception of Pure Duty, duty that "help[s] others where one can...[with an] inclination for the sake of duty alone."[2] Kant argues that *a priori* reason compels one to act according to such a conception of duty.[3] Thus, Kant defines duty as "the necessity to act out of reverence for the [universal] law."[4] Thus, only actions consistent with the categorical imperative are moral.[5] Kant then derives two important formulations of the categorical imperative. These are the *Formula of the End in Itself*,[6] and *the Formula of the Kingdom of Ends*.[7] When a citizenry upholds the "Kingdom of Ends" by willing laws according to the categorical imperative, it also wills the government's implementation of those laws.[8]

Thus, as Kant argues in "Theory and Practice," when a government implements the moral will, the citizenry must comply with even unpleasant actions. Pure reason alone, not the happiness of the citizenry, generates the categorical imperative.[9] From this, Kant discovers an absolute prohibition on resistance because, he claims, resistance universalizes only anarchy,[10] not the *Kingdom of Ends*.[11] Resistance hinders the implementation of the society's moral will, thus creating a

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contradiction.[12] Kant also argues that only the "supreme arbiter of public right," even if he is a tyrant, can interpret and implement the moral law; thus, rebellion of the people could never constitute a legitimate execution of the moral will.[13] Finally, any coercion or force involved with the rebellion would involve brutality, which only "perpetrate[s]... wrong[s] of the highest degree."[14]

John Locke's opposing stance on the right to revolt can help to highlight some of the problems in the Kantian view. Like Kant, Locke argues that society fundamentally values "reason."[15] However, Locke argues that reason compels citizens principally to value property[16] and to create government to help them protect this property.[17] Consequently, once a government fails to protect, or, worse yet, harms, the citizens' property, that government "dissolves" its right to legitimately rule the people, giving right to the collective to establish a new government.[18] Locke argues that only a "long train of abuses," such as the use of tyrannical and capricious power against the collective, enslavement, and arbitrary rule without regard to the moral will justifies such a revolt against the government.[19]

The categorical imperative may indeed uphold Kant's absolute prohibition on rebellion. Paradoxically, the categorical imperative also seems to support Lockean justifications for rebellion. First, and most importantly, Locke's conception of rebellion seems consistent with Kant's conception of duty. As mentioned above, even Kant can conceive of the possibility of a ruler tyrannizing the collective moral will.[20] An evil tyrant could arbitrarily murder innocent citizens or commit other moral atrocities against the collective and forbid citizens to oppose these actions. Kant argues that pure moral action is action solely based on the idea of duty. It would seem, then, that, in this scenario, citizens would be morally *obligated* to violate and resist the law and assume their duty to save these citizens from harm. Thus, the universal maxim that a citizen must always help another individual facing imminent harm justifies resistance to a state that uses unjust force against its citizens.

Similarly, a government that coerces its citizens to act unwillingly would violate the Autonomy Principle. Any government[21] that prevents any citizen from determining and acting upon universal maxims of morality would not respect the individual's ability to will the categorical imperative. This is a violation of the Autonomy Formulation of the categorical imperative. Any Kantian collective

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striving to achieve moral freedom would be thus morally *obligated* to resist all forms of external enslavement. Thus, the Autonomy Formulation universalizes the Lockean principle of resistance to a government that enslaves its people.[22]

Finally, the Kingdom of Ends also seems to universalize resistance. If the Kingdom of Ends requires government to execute and protect the moral will, any government that neglects its duties, fails to implement the moral will, rules without regard to the moral will, or arbitrarily alters the government, violates the categorical imperative.[23] In these cases, [24] the government would deliberately stop administering the moral will, thus challenging the enforcement, legitimacy, and perhaps even the existence[25] of the moral will. Thus, any Kantian society would be morally *obligated* to ignore a government that neglected its duties and to establish a new government that *would* do its job. Thus, the Kingdom of Ends universalizes Lockean principles of resistance when the government neglects its duty.

Consequently, the only legitimate government in a Kantian sense is a government that adheres to and implements the collective moral will. As I have just shown, when a government attempts to destroy the moral will, denies its citizens the ability to create the moral will, or neglects the moral will (thus preventing the moral will from actualizing itself), the government violates the categorical imperative. Therefore, the categorical imperative universalizes the notion that these forms of government are illegitimate. When a government violates the categorical imperative, the government "dissolves" its legitimate claim to govern.[26] As Locke rightly points out, such an illegitimate government is the true rebel force, since it imposes its own will upon the collective, rather than merely implementing the collective moral will, thus "rebelling" against its duty to enforce the collective moral will.[27]

Consequently, Kantian citizens have an obligation to restore legitimate rule not only because legitimate rule alone conforms to the categorical imperative, but also because they have a duty to the collective to protect and uphold the moral will. Moreover, if the collective wills the government in the first place, then the collective should have the ability to will another government when the first government fails to uphold the collective's values.

Consequently, there are also many responses to Kant's argument that rebellion requires immoral actions in order to accomplish its purposes. Most importantly, Locke responds with the idea of supreme necessity: in extreme circumstances, a citizen must protect one's own life and the lives of one's fellow citizens. Violence to reinstate a moral government would be a lesser evil than permitting an evil government to reign. A tyranny[28] that destroys the moral innocence of the collective that it is supposed to represent causes far greater, more insidious and more irreparable evils than does the violence that attempts to remedy it.[29] Besides, if the categorical imperative justifies rebellion, then the categorical imperative also justifies the means to accomplish this rebellion. Finally, as Locke observes, "this doctrine of a power in the people of providing for their safety a-new...is the best fence against rebellion" because a government that respects the collective's ability to form a new government is a government that understands the limits of its own power.[30]

Kant's problems concerning rebellion demonstrate serious flaws in Kantian political theory. First, the categorical imperative leads ironically to moral relativism, not moral abso-

lutism. Both Kant and Locke base their political theory upon the idea of "reason." However, Kant and Locke generate radically different conceptions of reason, one based on *a priori* reason, the other on self-preservation. Both Kant and Locke use "reason" to justify their very different views on the political right to rebel. The categorical imperative, instead of supporting one idea and disproving its opposite, seems paradoxically to support both. Can an absolute principle still be absolute if its contradiction is also absolute? If the categorical imperative can generate both a principle and its antithesis, then can't the categorical imperative generate *any* principle?[31] Kant assumes that since *a priori* reason generates universal principles, everyone will generate the same precepts and act similarly in similar circumstances. Since people reason differently, and since the categorical imperative seems to derive whatever an individual wants it to, the categorical imperative seems to support moral relativism, rather than moral absolutism. Thus, a government that bases itself upon the moral will of the collective would found itself on relativist principles, thereby annihilating the ability of its citizens to unite.

In addition, Kant's notions of individual rights conflict with his notions of legitimate state power. The categorical imperative aims to empower individual rights over the state, while simultaneously creating and giving legitimacy to the state. Then Kant argues that when the state forms, the collective must always obey the government—in effect, arguing that the state becomes more important than the individuals that willed its existence. The system works as long as the government reflects the collective's moral will, because then it remains impossible to determine whether the collective or the government has control. However, if an evil regime controls the government and works contrary to the moral will, Kant argues that the state still has supremacy. In such circumstances, Kant should have argued that individual members of the collective have a duty to achieve moral freedom beyond any requirements of governments. Then he would have discovered that individual members of the collective always have a duty to resist and rebel, to strive for moral freedom. Consequently, Kant should have discovered that the moral needs of the individual citizens should always outweigh the needs of the state.

The failure of Kantian logic to defend against Locke's qualifications for rebellion demonstrates weaknesses in Kantian political thought. Since the categorical imperative generates both an absolute prohibition against rebellion as well as exceptions to this absolute prohibition, a collective ought to expect the categorical imperative to derive only relative, not absolute, morality. Kantian limitations on the freedoms of the collective also contradict the moral needs and requirements of the collective. As a result, it seems impossible for a society to adhere to Kantian conceptions of reason and morality and still conform to a Kantian conception of government. Besides, a bitter irony seems to exist suggesting that a moral people would never want to live in a Kantian society. If morality to Kant means compliance with the law even during the darkest times, a moral people could violate laws of duty to maintain personal moral purity, thus committing greater, more morally haunting, sins of inaction in time of greatest need. Great intentions have created marvelous wonders in the world. Yet, even these great intentions, when unchecked, have and will continue to cause far greater moral disasters than those they purport to help. Indeed, we live in a world "where

to do harm/Is often laudable, to do good sometime/ [is] dangerous folly."[32]

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[1] Kant describes both duty and the categorical imperative in great detail in his *Groundwork of the Metaphysic of Morals*.

[2] Immanuel Kant, *Groundwork of the Metaphysic of Morals*. Trans. H.J. Paton (New York: Harper & Row Publications, 1964), 66.

[3] Ibid., 68.

[4] Ibid., 68.

[5] The categorical imperative is: "*Act as if the maxim of your action were to become through your will a universal law of nature.*" Ibid., 70. Kant also refers to this as the "*Formula of the Universal Law.*" Ibid., 88.

[6] Also known as the Law of Autonomy. Ibid., 98.

[7] "A rational being must always be regarded as *making universal law.*" Ibid., 102.

[8] Immanuel Kant, "On the Proverb: That May be True in Theory, But is of No Practical Use." *Perpetual Peace and other Essays*. Trans.Ted Humphrey. (Indianapolis: Hackett, 1983), 79.

[9] "[Kant] will only note that in discussions of right its source is the common fallacy of substituting the principle of happiness for the principle of right" Ibid., 81.

[10] Kant would likely define anarchy as picking which laws to obey and which laws to disobey, based on a conception of personal happiness.

[11] Ibid.

[12] "Such resistance would have to derive from a maxim that, if made universal, would destroy all civil constitutions, thus annihilating the only state in which men can possess rights." Ibid.

[13] "Only he who is the supreme arbiter of public right can do so- and that that is precisely the nation's leader. Thus no one in the commonwealth can have a right to challenge that authority" Ibid., 80.

[14] "Even where one grants that no wrong is done to a prince...by such an uprising" Ibid.

[15] John Locke. *Second Treatise of Government*. ed. C.B. Macpherson. (Indianapolis: Hackett, 1980). "Are the people to be blamed, if they have the sense of rational creatures...?" §230.

[16] Life, liberty, and fortunes. Ibid., §221 (but referred to throughout the entire *Treatise*).

[17] Ibid., §111 "...men found it necessary to examine more carefully the original and rights government, and to find out ways to restrain the exorbitances, and prevent the abuses of that power, which they having intrusted in another's hands only for their own good..."

[18] Ibid., §205.

[19]Ibid 18. §210. "...a long train of actions shew the councils all tend that way..." toward rebellion.

[20] Ibid 18. §207-§209.

[21] The situation would be worse if the government enslaves its citizens and forces them to commit immoral actions for immoral purposes. Regardless, even a benevolent condition of servitude that achieves moral ends violates the categorical imperative.

[22] Ibid., §222

[23] Ibid., §214-§220.

[24] The first two cases suggest that the government works towards the destruction of the moral will, or otherwise violates it. In this case, the moral will, at least in its collective sense, seems to still exist (see the following note).

[25] It would seem that from a people moral because they accept their duty, *someone* would realize that they had a duty to enforce the moral will. Thus, if no one feels the need to enforce the moral will, it suggests that the collective does not universalize actions because of duty, and thus does not universalize actions according to the categorical imperative.

[26] Ibid., §219

[27] Ibid.

[28] For example, the Chinese occupation of Tibet in 1950 to the present destroyed a radically pacifist Buddhist society, necessitating Tibetan citizens to turn to violent revolts in 1954, 1987 and 1993.

[29] Ibid., § 224 and §225.

[30] Ibid., §226

[31] Hegel, when attacking Kant in the *Philosophy of History*, claims that Kant "is by no means passive as regards the exercise of his thinking powers. He brings his categories with him, and sees the phenomena presented to his mental vision, exclusively through these media." Hegel perhaps suggests that Kant inserts his own personal opinions into political theory and uses the categorical imperative to "prove" its truth, rather than allowing the categorical imperative to lead him to its natural political conclusions (if there are any) (11).

[32] William Shakespeare, *Macbeth* in *The Complete Works* (New York: Gramercy Books, 1975), IV.ii.84-86.

Commentary:
Bad Things Happen

Jason Lott

Americans have reared their heads in debate over gun control and censorship of the media, prompted of course by recent shootings in schools, day care centers, and investment firms. The right-wingers shake their finger at the media, who supposedly saturate the minds of the youth with violence via television, movies, and computer software, while left-wingers take active measures to shut down gun shows and attempt to pass more restrictive gun laws. In either case, it is assumed outright that (1) violence in the media has increased and (2) guns are readily available. The unconfirmed validity of these two assumptions is not, in itself, fallacious. Assuming these two premises are true (they most likely are), it seems almost inevitable to reach the conclusion that (1) or (2) is the cause of such killings at hand. This conclusion, however, cannot be reached as 'naturally' as many would believe, and indeed seems indicative of the post hoc ergo propter hoc— 'after this; therefore, because of this'—fallacy.

This classical error occurs when one assumes that because X (in this case the two premises mentioned above) occurs before Y, X must be the cause of Y. Or in other words, because (1) increased violence in the media and (2) increased availability of guns are conditions which preceded the recent outbreak of killings, they must have necessarily caused those killings. The fallacy, of course, lies in ignorance of other factors which may have contributed to Y. *Post hoc ergo propter hoc* fallacies are particularly well-suited for political agendas, which are notorious for ignoring relevant, but possibly harmful, facts when assessing situations and their outcomes.

Normally a thorough, unbiased examination of a situation provides ample vaccination against *post hoc* errors. What makes public response to the recent killings so frightening is that almost everyone has exhibited a 'knee-jerk' reaction toward either guns or the media, indicating that most people are not only in danger of committing this particular error of logic, but also may pass legislation or enact policies that they may regret in the future. For these reasons (among others), a less hasty examination of the

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killings and their possible causes is warranted.

Analyzing those causes, however, may not prove so easy. It could be that a certain fault in reason is being committed by the majority of the public, a fault which can generally be corrected by stepping back from the situation for a while, and then re-examining it for possible clues to its cause. I would offer what has become an 'unpopular' or even unmentionable position to describe situations similar to the recent flurry of shootings, which can be loosely called the 'bad things happen' (BTH) position.

BTH describes situations which have no discernible causes, where the finger that initially points to A or B ends up confusedly pointing at the whole alphabet. A similar sort of reasoning was often employed by religious institutions during the medieval ages to explain away the questions of the masses; difficult situations with no discernible causes were explained away by invoking something resembling the ephemeral phrase "So God intended it to be." Of course the rise of science and its armory of explanatory power soon drove God into the gaps, and the scientific method took over as the new Emperor of Explanations and Causes.

And it has remained so even until today. Nothing has been declared 'off-limits' or 'cognitively-closed' to science and its methods, such that we now assume that a definitive, identifiable cause lies behind every action. As a result, when any situation remotely similar to the recent killings occurs, causes of the situation are sought out even before any debate has taken place over whether such causes *even exist*. The concept of causes, in this case, needs to be qualified. I certainly contend that every action has a cause in some sense; an accurate description of local physical causes can be given for almost any physical system (with the possible exception of certain quantum phenomena). But these local causes should not be confused with the non-local causes in question, which normally involve an intermixing of social and political factors, among other things. Such non-local causes are of the type normally sought out by the public when situations like the shootings occur, so much that the distinction between local and non-local causes becomes blurred if not ignored. And thus when an outbreak of killings surfaces like those in Columbine and Atlanta, discernible causes for the killings are immediately sought, with little if any attention whatsoever paid to the possibility that the killings were altogether barren of any non-local causal influences.

Empirical data also become lost in the shuffle, especially when such data suggest that incidences of crimes (especially violent crimes) in the United States have actually been decreasing since 1980. According to the Uniform Crime Reports (UCR) and the National Crime Victimization Survey (NCVS), there have been "moderately large declines of 17 to 21 percent for homicide, robbery, burglary, and auto theft."[1] Other crime rates, such as that of rape, have plummeted dramatically (incidences of rape are down 47 percent since 1992); an overall decline in all categories of crime has taken place in the US.[2] It should be noted that such reports run contrary to predictions made in the 1980s claiming that steep increases in crime rates would occur as populations of ethnic/racial minorities increased. Recall, for example, the hackneyed "super predator" youth that possessed "fewer moral restraints than any such group in American history" and who were supposed emerge in the 1990s as a criminal plague.[3]

These data force us to ask what factors have caused such decreases in crime. Although suggesting non-local

causal links between specific social implementations—such tightened restrictions on gun control, plateaued demand for drugs, and more effective policing—can prove somewhat dangerous, the comprehensive efficacy of these non-local implementations (as well as many others not mentioned) in decreasing overall crime cannot be denied. Neither can the beneficial effects of the present economy be ignored. But in positing the existence of these links it must be remembered (as is so conveniently forgotten by the media) that they operate at the social—not individual—level. It is the universal move from the social efficacy of these institutions to individual efficacy that is being protested here. Simply put, no *universal* claim can be made linking the effects of social institutions (less violence in the media, stricter access to guns) to the actions of particular *individuals*. And yet it is this universal move many people try to make when grappling with situations like Columbine or other 'bad things.' A fallacious transition is made from local actions to non-local causes, and we find ourselves in a national debate about the 'state of the youth in America,' although the empirical studies mentioned above show that, if anything, the youth of today are much less violent than they were almost 20 years ago. The proper context of 'bad things' then is within a larger trend of decreasing crime, as exceptions and not exemplifications.

This may lead to an interesting conclusion, namely BTH as described above. Upon accepting that non-local social implementations have had some effect in shaping the decreasing trend in violence in America, and that 'bad things' are exceptions to this trend, it follows that 'bad things' are exceptions to non-local causal implementations, i.e. they are not influenced by these implementations. One could claim that this inference is trivial, that there is an exception to every rule. But notice that this objection justifies the position being argued, that 'bad things' do not necessarily have non-local causes. The only remaining option is to object to the premise—that 'bad things' are not within the scope of non-local social implementations (and thereby not existing as exceptions)—but this too clearly supports the position being argued such that, in light of the current empirical evidence, 'bad things' currently appear independent of non-local social implementations altogether. Certainly this conclusion deserves more attention than it presently receives in the media, independent of whether it is a valid inference or not.

Once their proper context is established, 'bad things' become removed from the sphere of social institutions. Instead of looking toward the

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media or guns or video games as the reason for the killings, perhaps a healthy dose of fatalism should be ingested for a change. 'Bad things' often happen, and when they do it may prove impossible to justly assign culpability to any particular fault of society without running the danger of unnecessarily restricting civil liberties in attempts to 'remedy' the situations so that they will not happen again. This is not to say that goals of social reform should be abandoned, but neither should a 'grander explanation' be sought for every horrible incident that occurs; it may be that there are innumerable contributing societal causes or a lack of them altogether. In either case, knee-jerk reactions are more likely to exacerbate the situation than to help it, and certainly no single piece of legislation is going to be a panacea, no matter how much politicians parade it as such.

But is the question being begged here? It has yet to be established that identifiable non-local causes can be absent from certain situations. Even so, the point being made is that such a possibility is *never considered an option*. Whether this particular cultural phenomenon is a product of society's enchantment with science, or whether society itself forces answers to any and all questions that gain the public's attention remains to be seen. Such a determination is most likely epistemically inaccessible, which leaves us to choose between (1) continuing to assess situations according to unproved assumptions about the existence of non-local causes or (2) redefining our situational assessments to include the possibility of absent non-local causes.

And without strong evidence indicating that all situations *do* have discernible non-local causes, we must be prepared to admit to ourselves that certain bad things may always happen such that we are powerless to prevent. This would certainly be a departure from both conservative and liberal dogma, but might prove beneficial in assessing what can reasonably be expected from societal reforms and legal policies that may otherwise go astray in trying to overcome an unyielding hand of fatalism.

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[1] Harer, Miles D. and Steffensmeier, Darrell "Making Sense of Recent U.S. Crime Trends, 1980 to 1996/1998: Age Composition Effects and Other Explanations," 33.6 *Journal of Research in Crime and Delinquency* 235-236 (August 1999).

[2] Ibid., 243.

[3] Ibid,. 235.

"Having spent some time recently in Sweden, I find it hard to imagine that Swedish socialism is creeping anywhere, except possibly under a rock to hide."

— **Virginia Postrel**, in the November 1999 issue of *Reason Magazine*.

"We appreciate the President's advice, but we don't intend to use him as a model for how Governor Bush will raise money or lead the nation."

— A statement released by the **Bush campaign** responding to President Clinton's complaints about its levels of fundraising, as quoted in the 21 October 1999 *New York Times*.

"Ms. Wolf is the moral equivalent of an Armani T-shirt, because Mr. Gore has obscenely overpaid for something basic. It is advice given to all vice presidents: Be your own guy."

— **Maureen Dowd**, on Naomi Wolf, who was hired by the Gore campaign to teach the Vice President how to be an "alpha male," as quoted in Ms. Dowd's 3 November 1999 *New York Times* column.

"What happened, as I said to my staff, is that men never ask for directions, and we mistakenly bombed the Chinese Embassy in Belgrade. [That] really chilled relations for almost five months."

— United States trade representative **Charlene Barshefsky**, telling the Senate Banking Committee why negotiations over China's entry into the World Trade Organization have taken so long, as quoted in the 3 November 1999 *New York Times*.

"I've already got my own airplane. We could save money on Air Force One."

— **Donald Trump**, on why he would make a good president, as quoted in Maureen Dowd's column in the 17 November 1999 *New York Times*.

"Nostradums' prediction for 1999 turned out to be over-pessimistic. A King of Terror did not emerge from the sky in July to create a war with the Chinese, and we are extremely grateful. Although we were a little nervous when America accidentally bombed that Chinese embassy. We are furthermore thankful that Edgar Cayce, 'the sleeping prophet,' was mistaken about California sliding into the sea and the disappearance of Japan. Additionally, we are relieved that a mysterious rainbow did not appear on Aug. 18 to suck all the oxygen out of the atmosphere, as Criswell forecast in 1968."

— **Gail Collins**, in her 23 November 1999 *New York Times* column.

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